

“[T]o satisfy the element of outrageous conduct necessary to a cause of action for emotional distress, a plaintiff must allege that (1) the defendant abused a relation or position which gives him power to damage the plaintiff’s interest, (2) the defendant knew that the plaintiff was susceptible to injury through mental distress, or (3) the defendant acted intentionally or unreasonably with the recognition that the acts were likely to result in illness through mental distress. [Citation.]” (*Ankeny v. Lockheed Missiles and Space Co.* (1979) 88 Cal.App.3d 531, 536.) “In order to avoid a demurrer, the plaintiff must allege with ‘great[] specificity’ the acts which he or she believes are so extreme as to exceed all bounds of that usually tolerated in a civilized community. [Citation.]” (*Vasquez v. Franklin Management Real Estate Fund, Inc.* (2013) 222 Cal.App.4th 819, 832.)

“‘There is no bright line standard for judging outrageous conduct and “... its generality hazards a case-by-case appraisal of conduct filtered through the prism of the appraiser’s values, sensitivity threshold, and standards of civility. The process evoked by the test appears to be more intuitive than analytical...”’ [Citation.]” [Citation.]’ [Citation.] Thus, whether conduct is ‘outrageous’ is usually a question of fact. [Citations.]” (*Yun Hee So v. Sook Ja Shin* (2013) 212 Cal.App.4th 652, 671-672; *Yurick v. Superior Court* (1989) 209 Cal.App.3d 1116, 1129 [“On the spectrum of offensive conduct, outrageous conduct is that which is the most extremely offensive. Depending on the idiosyncracies of the plaintiff, offensive conduct which falls along the remainder of the spectrum may be irritating, insulting or even distressing but it is not actionable and must simply be endured without resort to legal redress”].)

“‘Generally, conduct will be found to be actionable where the “recitation of the facts to an average member of the community would arouse his resentment against the actor, and lead him to exclaim, ‘Outrageous!’” [Citation.]’ [Citation.]” (*Cochran v. Cochran* (1998) 65 Cal.App.4th 488, 494; *Davidson, supra*, 32 Cal.3d at p. 209 [““Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community”].)

Plaintiff has alleged facts that Defendant’s conduct, taken together, rises to the level of extreme and outrageous conduct. More specifically, Defendant terminated Plaintiff, during the holidays, based on allegations that were false and not properly investigated. Plaintiff further alleges Defendant departed from its ordinary policy and practice for handling such allegations. In doing so,

		Defendant denied Plaintiff the opportunity to respond to the allegations, and it falsely branded Plaintiff a sexual harasser. (Complaint, ¶¶ 70-71.) After terminating Plaintiff, Defendant first denied Plaintiff unemployment benefits, then blackballed him from selling Defendant's insurance products to his clients, all of which forced Plaintiff to tell his wife about the false allegations. (Complaint, ¶¶ 70-71.) Taken together, these allegations rise to the level of extreme and outrageous conduct, which are sufficient to support Plaintiff's fourth cause of action. Plaintiff to give notice.
4	Avelar-Jauregui vs Lieban	1. <u>Motion to Compel Answers to Form Interrogatories</u> 2. <u>Motion to Compel Answers to Special Interrogatories</u> 3. <u>Motion to Compel Production</u> TENTATIVE RULING: Plaintiff Leonel Avelar-Jauregui's motions to compel Defendant Robert Alan Lieban aka Robert Alan Lieban Jr. to serve further responses to his second sets of Form Interrogatories (nos. 16.2-16.5), Special Interrogatories (no. 113), and Request for Production (nos. 50-54) are GRANTED. Defendant is ordered to serve verified further responses, and produce responsive documents, within 30 days. The Court DENIES Plaintiff's requests for judicial notice, and it deems Defendant's objections to the requests for judicial notice as being MOOT. <u>Form Interrogatory nos. 16.2-16.5</u> In his August 10, 2023 amended response to Form Interrogatory nos. 16.2 through 16.5, Defendant responded as follows: This interrogatory calls for information which seeks defendant's opinion or conclusion without establishing a proper foundation, and calls for expert opinion which defendant is not qualified to render regarding plaintiff's claimed injuries. Therefore, after a reasonable inquiry and good faith effort made, defendant responds: